

Judgments & Constitutional Articles for GS2

UPSC Mains General Studies Paper 2 — Polity,
Governance & Social Justice

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1. Fundamental Rights — Key Articles & Judgments

Article 12 — Definition of State

Text: Defines "State" for Part III enforcement — includes Government and Parliament of India, Government and Legislature of States, all local authorities, and other authorities within India or under control of Government of India.

Landmark Judgment: Pradeep Kumar Biswas v. Indian Institute of Chemical Biology (2002) — The Supreme Court evolved the "agency or instrumentality of State" test. Key factors: deep and pervasive state control, functional character (government functions), state's shareholding, monopoly status. The judgment overruled the narrow interpretation in *Sabhajit Tewary* (1975) and expanded the scope of Article 12.

Contemporary Relevance: Used to determine writ jurisdiction against PSUs, regulatory bodies, and even private entities performing public functions.

Article 13 — Laws inconsistent with Fundamental Rights

Text: All laws in force before the Constitution and any future laws inconsistent with Part III shall be void to the extent of inconsistency. Clarifies that "law" includes ordinances, orders, by-laws, rules, regulations, notifications, and customs.

Landmark Judgment: Kesavananda Bharati v. State of Kerala (1973) — The basic structure doctrine emerged from this case. The Court held that Article 13 does not bar amending the Constitution under Article 368 but amendments that destroy the basic structure are void. This established judicial review of constitutional amendments.

Contemporary Relevance: The basic structure test continues to be applied to constitutional amendments (NJAC case, 2015).

Article 14 — Right to Equality

Text: The State shall not deny to any person equality before the law or equal protection of the laws within India.

Landmark Judgment: E.P. Royappa v. State of Tamil Nadu (1974) — The Court introduced the "arbitrariness test" — Article 14 strikes at arbitrariness in state action. This was elaborated in *Maneka Gandhi v. Union of India* (1978) where the Court held that Article 14, 19, and 21 are not mutually exclusive but form a "golden triangle."

Contemporary Relevance: Used to challenge discriminatory laws, arbitrary executive action, and as the foundation for the anti-arbitrariness principle in administrative law.

Article 15 — Prohibition of Discrimination

Text: Prohibits discrimination on grounds of religion, race, caste, sex, or place of birth. Allows special provisions for women, children, SCs, STs, and socially/educationally backward classes.

Landmark Judgment: Indra Sawhney v. Union of India (1992) — Mandal case — Upheld 27% OBC reservation. Key holdings: Creamy layer must be excluded from OBC reservation; reservation in promotions is not constitutionally mandated; total reservation should not exceed 50%; no reservation in certain services (defence, judiciary).

Contemporary Relevance: Basis for ongoing debates on EWS reservation, Maratha reservation, OBC sub-categorisation.

Article 19 — Six Freedoms

Text: Protects six freedoms: (a) speech and expression, (b) peaceful assembly, (c) associations/unions, (d) movement throughout India, (e) residence and settlement, (f) profession/occupation/trade. All subject to reasonable restrictions.

Landmark Judgment: Shreya Singhal v. Union of India (2015) — Struck down Section 66A of IT Act as vague and overbroad. The Court held that the "reasonable restrictions" under Article 19(2) require a direct and proximate nexus with the restriction and the grounds mentioned. The three-fold test for Article 19 restrictions: (i) restriction must be by law, (ii) grounds must be specified, (iii) restriction must be reasonable.

Contemporary Relevance: Basis for internet freedom cases, sedition law challenges, and media freedom issues.

Article 21 — Right to Life and Personal Liberty

Text: No person shall be deprived of his life or personal liberty except according to procedure established by law.

Landmark Judgment: Maneka Gandhi v. Union of India (1978) — Transformed Article 21 from a narrow procedural right to a substantive fundamental right. The Court held that the "procedure established by law" must be "fair, just and reasonable." This judgment created the "golden triangle" of Articles 14, 19, and 21.

Contemporary Relevance: Source of numerous rights: right to privacy (Puttaswamy), right to clean environment, right to food, right to health, right to livelihood, right to die with dignity (Common Cause).

Article 21 — Right to Privacy

Text: Recognised as a facet of Article 21 through judicial interpretation.

Landmark Judgment: Justice K.S. Puttaswamy v. Union of India (2017) — 9-judge bench — Unanimously declared right to privacy as a fundamental right under Article 21. Privacy includes: (i) decisional autonomy (personal choices), (ii) informational privacy (data protection), (iii) spatial privacy (bodily integrity). The three-fold test for privacy infringement: legality, legitimate aim, proportionality.

Contemporary Relevance: Basis for Digital Personal Data Protection Act 2023; used to challenge Aadhaar, surveillance, CAA-NPR-NRC.

Article 25 — Freedom of Religion

Text: Freedom of conscience and free profession, practice, and propagation of religion, subject to public order, morality, and health.

Landmark Judgment: S.R. Bommai v. Union of India (1994) — While primarily about Article 356, the judgment held that secularism is part of the basic structure of the Constitution. The state must maintain equal distance from all religions. Religious practices can be regulated for social reform and public order.

Contemporary Relevance: Basis for temple entry, religious conversion debates, personal law reforms.

Article 32 — Right to Constitutional Remedies

Text: Right to move the Supreme Court for enforcement of Fundamental Rights. The SC can issue writs — habeas corpus, mandamus, prohibition, quo warranto, certiorari. Dr. Ambedkar called it the "heart and soul of the Constitution."

Landmark Judgment: L. Chandra Kumar v. Union of India (1997) — Held that the power of judicial review under Articles 32 and 226 is part of the basic structure. Even tribunals established under Article 323-A and 323-B cannot exclude the jurisdiction of High Courts and Supreme Court.

Contemporary Relevance: Article 32 can be suspended only during a national emergency (Article 359). The increasing pendency of writ petitions raises questions about access to justice.

Master Table: Judgments That Changed Constitutional Interpretation

Case	Year	Key Holding	Article(s)
Kesavananda Bharati	1973	Basic structure doctrine limits constituent power	13, 368
Minerva Mills	1980	Harmony between FR and DPSP is basic structure	14, 19, 21, 31C, 368
Maneka Gandhi	1978	Procedure must be fair, just and reasonable	14, 19, 21
SR Bommai	1994	Secularism is basic structure; judicial review of Art 356	25, 356
Indra Sawhney	1992	OBC reservation valid; creamy layer exclusion; 50% cap	15, 16
Puttaswamy	2017	Right to privacy is fundamental right under Art 21	21
Navtej Johar	2018	Section 377 partially struck down; consensual same-sex decriminalised	14, 15, 19, 21
Joseph Shine	2018	Section 497 (adultery) struck down as unconstitutional	14, 15, 21
Shreya Singhal	2015	Section 66A struck down as vague; Article 19(1)(a) protected	19(1)(a)
L Chandra Kumar	1997	Judicial review under Art 32/226 is basic structure	32, 226, 323A/B

Judgment Strategy for GS2: You don't need to memorise every judgment. Know the top 15-20 landmark cases by: (1) name and year, (2) key holding (one sentence), (3) which article it interprets, (4) contemporary relevance. This four-point structure fits perfectly into GS2 answers. Use at least one judgment in every 15-mark answer.

2. DPSP — Articles 36–51 & FR-DPSP Relationship

Key DPSP Articles

Article	Provision	Category	Implementation Status
39(b)	Community ownership of material resources	Socialist	Used in nationalisation policies; limited application after economic reforms
39(c)	Prevent concentration of wealth	Socialist	M RTP Act, Competition Act; partially achieved
40	Organisation of village panchayats	Gandhian	73rd Amendment (1992) — Part IX added
43	Living wage, decent standard of life	Socialist	Minimum Wages Act; Code on Wages 2019; partially achieved
43A	Worker participation in management	Socialist	Limited — worker directors in some PSUs, not widespread
44	Uniform Civil Code	Gandhian	Not implemented — pending since 1950; debated in contemporary discourse
45	Early childhood care and education (under 6 years)	Gandhian	Now a Fundamental Right under Article 21A (86th Amendment 2002)
47	Nutrition, standard of living, public health	Socialist	ICDS, PM-POSHAN, National Health Mission
48	Scientific agriculture, animal husbandry, cow protection	Gandhian	White Revolution; cow protection laws vary by state

48A	Protection of environment, forests, wildlife	Environmental	Environment Protection Act 1986; Forest Conservation Act; addl via 42nd Amendment
49	Protection of national monuments	Cultural	ASI, Ancient Monuments and Archaeological Sites Act 1958
50	Separation of judiciary from executive	Liberal	Partially achieved — criminal justice administration still lacks full separation
51	International peace and security	International	India's consistent foreign policy principle; UN charter commitment

FR-DPSP Relationship — Evolution through Jurisprudence

The relationship between Fundamental Rights (Part III) and Directive Principles (Part IV) has evolved significantly:

- **Champakam Dorairajan (1951):** FRs prevail over DPSPs — DPSPs are subordinate to FRs. This led to the First Amendment.
- **Golaknath (1967):** FRs cannot be amended even to implement DPSPs.
- **Kesavananda Bharati (1973):** FRs can be amended but basic structure cannot be destroyed.
- **Minerva Mills (1980):** Harmony between FR and DPSP is part of basic structure. Neither can be sacrificed for the other.
- **Unnikrishnan (1993):** DPSPs can be read into FRs to expand their scope (right to education as FR under Art 21).

GS2 Tip: When answering questions on welfare schemes, social justice, or education policy, always frame the response as "DPSP implementation through legislative/executive action." The DPSP + Fundamental Rights + Directive Principles framework shows a holistic constitutional understanding.

3. Executive & Legislature — Key Articles

Articles 52–78: The Union Executive

Article	Provision	Key Interpretation/Judgment
52	President of India — Head of State	Ceremonial head; bound by Council of Ministers' aid and advice (Art 74, 42nd & 44th Amendments)
53	Executive power of the Union vested in President	Exercised through officers subordinate; Ram Jawaya Kapur (1955) — executive power co-extensive with legislative power
74	Council of Ministers to aid and advise President	42nd Amendment made advice binding; 44th Amendment restored some discretion. It is the Council's decision, not President's personal.
75	PM appointed by President; other Ministers appointed on PM's advice	Collective responsibility to Lok Sabha; Minister's salary from Parliament; no minimum educational qualification
76	Attorney General of India	Highest law officer; appointed by President; right to speak in Parliament but no vote
78	PM's duties — communication with President	PM must communicate all decisions to President; furnish information when President calls for it

Articles 79–122: The Union Legislature (Parliament)

Article	Provision	Key Interpretation/Judgment
79		Bicameral system; President is integral part of Parliament

	Constitution of Parliament — President + Lok Sabha + Rajya Sabha	
80	Composition of Rajya Sabha — 250 members (238 elected + 12 nominated)	Nominated members for literature, science, art, social service
81	Composition of Lok Sabha — maximum 550 (530 states + 20 UTs)	Ceiling frozen until 2026 (84th Amendment); Delimitation Commission work on hold
105	Powers, privileges, and immunities of Parliament and its members	Freedom of speech in Parliament; immunity from court proceedings for parliamentary speech (subject to Article 121/211)
107	Provisions on disqualification and vacancy of seats	Can't be a member of both Houses; disqualification for defection (10th Schedule)
108	Joint sitting of both Houses	Summoned by President when bills passed by one house are rejected/not passed by the other; only for Ordinary & Constitutional Amendment Bills
110	Definition of Money Bill	Speaker's certificate is final; judicial review limited (though Ramdas Janardan Athawale v. Union of India (1996) opened narrow window)
111	President's assent to bills — can withhold, return (except Money Bills), or give assent	Pocket veto — President can keep bill pending indefinitely; no time limit prescribed
112	Annual Financial Statement (Union Budget)	Laid before both Houses; distinguishes charged from voted expenditure
118	Parliament's power to make rules of procedure	Autonomy of each House; courts cannot question parliamentary procedure (Article 122)
122	Courts not to inquire into parliamentary proceedings	Internal autonomy of Parliament; however, unconstitutional procedures can be challenged

Articles 163–173: State Executive & Legislature

Article	Provision	Key Interpretation
163	Council of Ministers to aid and advise Governor	Governor has discretionary powers (unlike President) — reservation of bills, report under Art 356, appointment of CM in hung assembly
164	CM appointed by Governor; Ministers on CM's advice	Collective responsibility to Legislative Assembly; no minimum qualification for CM
167	CM's duty to communicate with Governor	Analogous to Article 78; Governor can request information from CM
168	Constitution of State Legislature	Unicameral (most states) or bicameral (6 states with Legislative Council)
200	Governor's power to reserve bills for President's consideration	Major source of Centre-State friction; Punchhi Commission recommended limiting this power
201	President's power with respect to reserved bills	President can assent, withhold, or return; no time limit for President's decision

Quick Reference: Three Houses of Indian Parliament

Lok Sabha: 543 elected + 2 nominated Anglo-Indian (up to 2020 by 104th Amendment) = 545. Full term: 5 years. Presiding Officer: Speaker.

Rajya Sabha: 233 elected + 12 nominated = 245. Permanent House — 1/3 retire every 2 years. Presiding Officer: Chairman (Vice President).

State Assemblies: Maximum 500, minimum 60 (exceptions exist). Vidhan Parishad (Council) in 6 states only.

4. Judiciary — Key Articles & Landmark Interpretations

Article	Provision	Landmark Judgment/Interpretation
124	Establishment and constitution of Supreme Court	One Chief Justice + 33 judges (as per amended Act); appointed by President after consultation with CJI and other judges
124A-C	National Judicial Appointments Commission (NJAC)	Supreme Court Advocates-on-Record Association v. Union of India (2015) — NJAC struck down as violative of basic structure (judicial independence). Collegium system restored.
129	Supreme Court as court of record	Has power to punish for contempt of itself; power of judicial review inherent and plenary
131	Original jurisdiction — Centre-State, Inter-State disputes	Exclusive jurisdiction over federal disputes; excludes certain tribunals and special courts
132	Appellate jurisdiction — constitutional questions	Appeals from High Courts on constitutional questions; requires High Court certificate or SLP
136	Special Leave Petition (SLP)	Discretionary power; cannot be taken away even by constitutional amendment — part of basic structure
137	Review of judgments by Supreme Court	Limited power — can review its own judgments for error apparent on record
141	Law declared by SC binding on all courts	Precedent value; Article 141 binding on all courts within India's territory. SC can overrule its own judgments (prospective overruling — Golaknath).
142	SC's power to do complete justice	Extraordinary power to pass any decree for complete justice; used in high-profile cases (Bhopal Gas, Ayodhya, Sahara)
143		

	Advisory jurisdiction — President can seek SC opinion	Not binding; used for reference on constitutional questions (Kesavananda, NJAC, Ayodhya, 370 abrogation)
144	Civil and judicial authorities to act in aid of SC	All authorities must enforce SC orders; contempt for non-compliance
145	Rules of Court	SC can make rules for its own practice and procedure
226	High Court's power to issue writs	Wider than Article 32 — extends to any person/authority within territorial jurisdiction, including private bodies performing public functions
227	High Court's superintendence over subordinate courts	Administrative and judicial superintendence; ensures subordinate courts function within their jurisdiction
233	Appointment of District Judges	By Governor in consultation with High Court; ensures independence of subordinate judiciary
235	Control over subordinate courts vested in High Court	Postings, promotions, transfers, disciplinary matters — High Court control

Common Error: Students often confuse writ jurisdiction under Article 32 (SC) and Article 226 (HC). Remember: Article 32 is available ONLY for Fundamental Rights, and SC's jurisdiction is limited. Article 226 is wider — it covers any legal right and can be issued against private persons if they perform public functions. Article 226 is the workhorse for most litigation.

5. Federalism — Key Articles & Punchhi Recommendations

Key Federalism Articles

Article	Provision	Interpretation
245–246	Extent of laws — Parliament and State Legislatures	Art 246 read with 7th Schedule — Union List (100), State List (61), Concurrent List (52). Residuary power with Parliament (Art 248).
256	Obligation of States and Union — executive power compliance	Centre can give directions to States; State must exercise executive power to ensure compliance with laws
257	Centre's control over States in certain cases	National highways, railways, inter-state waterways — Centre can give directions; States must comply
262	Adjudication of inter-state water disputes	Parliament can exclude SC jurisdiction; Inter-State River Water Disputes Act 1956; Tribunals for Krishna, Cauvery, Ravi-Beas, etc.
263	Inter-State Council — coordination mechanism	Recommendations of Sarkaria & Punchhi Commission; Council established 1990; meets 3-4 times/year
269	Taxes levied and collected by Union but assigned to States	Sale of goods in interstate trade, consignment tax — collected by Centre, assigned to States
270	Taxes levied and distributed between Union and States	All taxes in Union List except 268, 269, 271 — divided between Centre and States per Finance Commission recommendations
275	Grants-in-aid from Union to States	Finance Commission determines quantum; for welfare of tribal areas and supporting state revenues

280	Finance Commission	Quinquennial body; recommends tax devolution, grants-in-aid, fiscal discipline measures
293	Borrowing powers of States	States cannot borrow outside India; Centre can give loans; State loans limited if Centre has outstanding debt to State
301–307	Freedom of trade, commerce, and intercourse	Free flow of goods across states — subject to reasonable restrictions in public interest (Art 302)
312	All India Services	IAS, IPS, IFoS — created by Parliament if Rajya Sabha passes resolution by 2/3 majority. Part of Sarkara Commission recommendations.
355	Duty of Union to protect States against external aggression and internal disturbance	Counterpart to Article 356; Union must protect States, not just control them

Punchhi Commission Recommendations on Federalism

The Punchhi Commission (2007-10) on Centre-State Relations made the following key recommendations to strengthen federalism:

- **Governor:** Appointment through a committee of PM, CM, and CJI; removal only by impeachment-like process; discretionary powers should be limited; should not be a political appointee.
- **Article 356:** Should be used only as a last resort; President's rule proclamation must be approved by Parliament within 1 month; state assembly should not be dissolved until proclamation is approved.
- **Inter-State Council:** Must meet at least thrice a year; establish a separate secretariat; should be the primary forum for Centre-State coordination.
- **Financial:** GST compensation mechanism; Finance Commission's role to be strengthened; state borrowing limits to be made more flexible.
- **Residuary Powers:** Re-examination of Article 248 which gives residuary powers to Centre; some areas should be shared.

- **Concurrent List:** Remove certain subjects from Concurrent List and transfer to State List.

Federalism Answer Strategy: When answering GS2 questions on Centre-State relations, use the "cooperative federalism" framing (not unitary vs federal binary). Reference: (1) GST Council as cooperative federalism example, (2) Punchhi recommendations for reform, (3) Supreme Court's SR Bommai judgment on federalism as basic structure, (4) Finance Commission awards for fiscal federalism.

6. Emergency Provisions

Article	Type of Emergency	Grounds	Key Features
352	National Emergency (War, External Aggression, Armed Rebellion)	President satisfied that security of India or any part is threatened	Extends to whole/part of India; FRs under Art 19 suspended automatically; Art 21 cannot be suspended; Parliament can make laws on State List; President can modify distribution of revenues. Lok Sabha must approve within 1 month.
356	President's Rule (State Emergency / Failure of Constitutional Machinery)	President satisfied that government of a state cannot be carried on per Constitution	President assumes state functions; state assembly suspended/dissolved; Governor administers state; maximum 3 years with Parliamentary approval every 6 months (1 year after 44th Amendment).
360	Financial Emergency	President satisfied that financial stability/credit of India or any part is threatened	Never imposed; central government can give directions to states on financial matters; reduction of salaries of judges and civil servants; all money bills reserved for President's consideration.

Landmark Judgments on Emergency

ADM Jabalpur v. Shivakant Shukla (1976) — Habeas Corpus case: The Supreme Court held that the right to approach courts under Article 226 (habeas corpus) is suspended during emergency. This was heavily criticised. Justice H.R. Khanna dissented — "even in the darkest hour, the law does not permit the state to take away the right to life." The 44th Amendment (1978) reversed this by providing that Article 20 (protection against ex post facto

law, double jeopardy, self-incrimination) and Article 21 (right to life) cannot be suspended even during emergency.

S.R. Bommai v. Union of India (1994): Established judicial review of President's Rule under Article 356. Key holdings: (i) President's satisfaction under Article 356 is justiciable, (ii) secularism is part of basic structure and its violation justifies Article 356, (iii) state assembly should not be dissolved until proclamation is approved by Parliament, (iv) Article 356 cannot be used to settle political scores.

Rameshwar Prasad v. Union of India (2006): Imposition of President's Rule in Bihar before the formation of government was malafide. The court held that the Governor's report recommending Article 356 can be scrutinised by courts for mala fides, non-application of mind, or arbitrariness.

44th Amendment Act 1978 — Key Safeguards: Article 21 cannot be suspended; Article 19 can be suspended only during war/aggression, not armed rebellion; President must receive written Cabinet advice; Parliamentary approval required every month; internal emergency requires "armed rebellion" not "internal disturbance" (narrower ground).

7. Amendment Process & Basic Structure Doctrine

Article 368 — Amendment Process

Three Types:

- **Simple Majority:** Articles 2, 3, 4, 6, 7, 8, 10, 11, 75(5), 101, 102, 105, 108, 124(1), 135, 144, 169, 171, 180, 190, 197, 202, 214, 240, 299, 306, 310, 311, 343-345, 348, 349, 350, 371 — outside the scope of Article 368.
- **Special Majority (2/3 of present and voting + majority of total membership of each House):** Most amendments — rights, DPSP, structure of institutions, etc.
- **Special Majority + Ratification by 50% State Legislatures:** Matters affecting federal structure — election of President (54, 55), extent of executive power (73, 162), High Courts (214-231), Supreme Court (124-147), distribution of legislative powers (245-255), representation of states in Parliament (80-81), Article 368 itself.

Basic Structure Doctrine — Evolution through Key Cases

Case	Year	Contribution	Elements of Basic Structure
Sankari Prasad	1951	Parliament's power to amend FRs is unlimited	— (pre-basic structure)
Golaknath	1967	FRs cannot be amended; prospective overruling	— (FRs are beyond amendment)
Kesavananda Bharati	1973	Basic structure doctrine formulated — 13:7 majority	Supremacy of Constitution, Republican & Democratic form, Secularism, Separation of Powers, Federal character

1975

Indira Nehru Gandhi		Election of PM/ Speaker cannot be beyond judicial review	Rule of Law, Free and Fair Elections, Judicial Review
Minerva Mills	1980	Harmony between FR and DPSP is basic structure; Art 31C extended is void	Limited amendment power; Judicial Review
Waman Rao	1981	Basic structure applies to amendments post-24 April 1973	Prospective application of Kesavananda
SR Bommai	1994	Secularism is basic structure; Art 356 is judicially reviewable	Secularism, Federalism, Democracy
L Chandra Kumar	1997	Judicial review under Art 32/226 cannot be excluded	Judicial Review
NJAC Case	2015	NJAC struck down; collegium system restored	Judicial Independence, Rule of Law

Elements of Basic Structure (evolved over time)

- Supremacy of the Constitution
- Republican and Democratic form of Government
- Secular character of the Constitution
- Separation of powers
- Federal character of the Constitution
- Unity and integrity of the nation
- Judicial review (power of courts to review laws)
- Rule of law
- Independence of judiciary
- Free and fair elections
- Balance between Fundamental Rights and DPSP
- Equality of status and opportunity
- Dignity of the individual (Article 21's core)
- Welfare state (social justice as core)

- Sovereign, Democratic, Republican structure

Common Mud Point: The basic structure doctrine applies ONLY to constitutional amendments, not to ordinary legislation. Ordinary laws are challenged on the ground that they violate Fundamental Rights (Article 13), not that they violate basic structure. This distinction is crucial for GS2 answers.

8. Quick-Reference Table: Articles by GS2 Topic

GS2 Topic	Key Articles	Key Judgments
Indian Constitution — Features	1, 2, 3, 4	Berubari Union, SR Bommai, Kesavananda
Federalism & Centre-State	245-255, 256-263, 269-270, 275, 280, 293, 301-307, 355-356	SR Bommai, Rameshwar Prasad, State of Rajasthan v. Union of India
Separation of Powers	53, 73, 74, 121, 122, 211, 212	Ram Jawaya Kapur, Kesavananda, Indira Gandhi
Parliament — Structure & Functioning	79-122	Raja Ram Pal (cash-for-query), Speaker's power under 110
Judiciary — Structure & Independence	124-147, 214-231, 233-235	NJAC case, L Chandra Kumar, SP Gupta (First Judges case)
Fundamental Rights	12-35	Maneka Gandhi, Puttaswamy, Navtej Johar, Indra Sawhney
DPSP	36-51	Champakam, Minerva Mills, Unnikrishnan
Emergency Provisions	352, 356, 359, 360	ADM Jabalpur, SR Bommai, Rameshwar Prasad
Amendment Process	368	Kesavananda, Minerva Mills, Golaknath
Local Government	243-243ZG (73rd & 74th)	Constitutional status; Mandal/seat reservation upheld
Election Commission	324-329	Election Commission's independent status (TN Seshan case)

Anti-Defection

102, 191, 10th Schedule

Kihoto Hollohan (Speaker's power is judicially reviewable)

Final Strategy — The Judgment-Article Link: For every GS2 answer, follow this formula: (1) Identify relevant constitutional article(s), (2) Cite a landmark judgment interpreting that article, (3) State the contemporary relevance or application. Example: "Article 21, as interpreted in Puttaswamy (2017), includes the right to privacy, which is now regulated by the Digital Personal Data Protection Act 2023." This three-step formula works for any constitutional question.

Revision Priority: Rank your judgment memorisation by frequency of appearance in previous year questions. Top tier: Maneka Gandhi, Kesavananda, Indra Sawhney, SR Bommai, Puttaswamy, Minerva Mills. Second tier: Shreya Singhal, NJAC, Navtej Johar, Joseph Shine, L Chandra Kumar. Third tier: ADM Jabalpur, Kihoto Hollohan, SP Gupta, Unnikrishnan, Rajeev Dhavan (pension reforms). Master the first two tiers completely.

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